

The President's Pension Rules, 1962

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[Rule THE-PRESIDENT-S-PENSION-RULES-1962 of 1962](#)

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[The President's Pension Rules, 1962](#)

[Published vide Notification No. G.S.R. 1328\(E\), dated 1st October, 1962](#)

[Ministry of Home Affairs](#)

[G.S.R. No. 1328. - In exercise of the powers conferred by Section 5 of the President's \[Emoluments\]](#)

[\[Added vide MHA Notification No. 1/2/86-M&G dated 9-4-1986 GSR No. 613\(E\)\]](#)

[and Pension Act, 1951 \(](#)

[30 of 1951](#)

[\) the Central Government hereby makes the following rules namely :-](#)

[1.](#)

[Short title and commencement.](#)

[\(1\)](#)

These rules may be called the President's Pension Rules, 1962.

2.

Definitions.

- In these rules, unless the context otherwise requires -

(a)

'retired President' means a person who has ceased to hold office as the President of India either by the expiration of his term of office or by resignation of his office;

(b)

'secretarial staff' means any person or persons who may be employed by the retired President in connection with secretariat work;

(c)

'medical attendance and treatment' include medical consultation, cost of medicines, clinical and pathological tests, other methods of examination and surgical operations, which the retired President may require;

(d)

'medical attendant' means any registered medical practitioner practicing any system of medicine;

(e)

'regular medical attendant' means a medical attendant who may be nominated by the retired President for regular medical attendance and treatment;

(f)

'travelling expenses' mean -

(i)

in the case of Government medical officers, such travelling and other allowances as may be admissible to them under the rules of their service; and

(ii)

in the case of persons other than Government medical officers, expenditure incurred on travel not exceeding the amount admissible to a Class I Government servant of the highest grade.

[3.]

[Substituted vide Notification No. 1/5/90-M&G dated 30-7-1990 GSR No.676(E)]

(1) [(a) A retired President shall be entitled to secretarial staff consisting of a Private Secretary, an Additional Private Secretary, a Personal Assistant and two Peons and shall be paid actual charges incurred by him for the maintenance of such secretarial staff;

(b)

during each financial year, an amount not exceeding Rs. 60,000/- (Rupees sixty thousand only) shall be paid to every retired President towards the actual charges incurred by him on account of office expenses;]

(c)

all expenses referred to in clauses (a) and (b) of this sub-rule shall be borne by the Central Government;

(d)

a retired President shall be entitled without payment of rent to the use of a furnished residence anywhere in India at the choice of the retired President, without payment of water and electricity charges for the remainder of his life;

(e)

at places where Government owned accommodation is allotted to a retired President, the size of the residence shall be comparable to a residence allotted to a Minister in the Union Council of Ministers and if the highest type of Government residence available at a particular place is less in size than a residence allotted to a Minister in the Union Council of Ministers, the highest type of accommodation available at that place shall be allotted to the ex-President. At places where suitable Government residence is not available for allotment to a retired President, the size of residence to be taken on lease to be provided to a retired President, shall have a living area not exceeding 2000 square feet;

(f)

the value of the furniture and electrical appliances provided free of rent in a residence allotted to the retired President shall not exceed the monetary limit prescribed for supply of furniture and electrical appliances provided free of rent in a residence allotted to a Minister in the Union Council of Ministers;

(g)

[a retired President shall be entitled to the use of two telephones (one for internet and broadband connectivity) at his residence, one mobile phone with national roaming facility and a motor car, free of charge and shall be paid actual charges incurred by him on the maintenance thereof;]

[Substituted vide Notification No. 10/19/96-M&G dated 10-2-2009 GSR No. 88(E)]

Provided that he may use his own motor car in lieu of which he shall be paid, every month, car allowance equal to the cost of 250 litres of petrol plus salary admissible to a person, from time to time, holding the post of a Driver in the Government of India.

(h)

[in the event of the death of a President in harness or after demitting office, the surviving spouse shall be entitled, without payment of licence fee, to the use of furnished residence anywhere in India at the choice of the spouse, without payment of water and electricity charges for the remainder life;

[Substituted vide Notification No. 10/19/96-M&G dated 10-2-2009 GSR No. 88(E)]

(i)

at places where Government owned accommodation is allotted to the spouse, the class of accommodation shall be Type VIII and if the highest type of Government owned accommodation available at a particular place is smaller in size, the highest type of accommodation available at the place shall be allotted to the spouse;]

(j)

[at places where suitable Government accommodation is not available for allotment to the surviving spouse, the size of the accommodation to be taken on lease to be provided for the surviving spouse shall have a living area not exceeding 2000 square feet;

[Added by MHA Notification No. 1/1/97-M&G dated 11-8-2000. GSR No.661(E)]

(k)

residential accommodation shall be allotted to the surviving spouse at a place indicated by him or her, if he or she does not own any accommodation in that particular place;

(l)

the accommodation allotted to the surviving spouse shall be for the exclusive use of the spouse and the same shall not be transferred to any other person after the death of the surviving spouse;

(m)

the Directorate of Estates shall be responsible for arranging accommodation for the surviving spouse;]

(n)

[the surviving spouse of a deceased President shall be entitled to secretarial staff consisting of a Private Secretary and a Peon and shall be paid in each financial year an amount not exceeding Rs. 12,000 (Rupees twelve thousand only) towards the actual charges incurred by him on account of office expenses;

[Inserted vide Notification No. 10/19/96-M&G dated 10-2-2009 GSR No. 88(E)]

(o)

the surviving spouse of a deceased President shall be entitled to the use of a telephone at his residence and a motor car, free of charge and shall be paid actual charges incurred by the spouse on the maintenance thereof: Provided that the spouse may use his own motor car in lieu of which he shall be paid, every month, car allowance equal to the cost of 250 litres of petrol plus amount of salary admissible to a person, from time to time, holding the post of a Driver in the Government of India;

(p)

the surviving spouse of a deceased President shall be entitled to travel anywhere in India, in a calendar year to twelve single journeys, by the highest class, by air, rail or steamer, accompanied by a companion or a relative.]

(2)

At the initial appointment of the staff, information regarding the number of persons employed, their emoluments and the periods of their employment shall be furnished to the Central Government. All subsequent changes shall also be intimated as and when they occur.

(3)

[The amount required by the retired President or the surviving spouse of a deceased President, as the case may be, for the maintenance of secretarial staff and the office expenses shall be drawn in the form of simple receipt as and when required.

(4)

At the end of each year, a certificate to the effect that the amount drawn has been expended for the purpose for which it had been drawn, shall be given -

(i)

by the retired President or the surviving spouse of a deceased President, as the case may be, in Form-I; or

(ii)

by any person authorised by the retired President or the surviving spouse of a deceased President, as the case may be, in this behalf in Form-IA, appended to these rules.]

4.

Medical Attendance and Treatment.

(1)

The retired President shall be entitled to medical attendance and treatment at his residence, or at the clinic, nursing home or institution of similar nature or consulting room of the medical attendant, specialist or practitioner concerned -

(a)

[by a medical attendant or the regular medical attendant;

[Substituted vide Notification No. 10/19/96-M&G dated 10-2-2009 GSR No. 88(E)]

(b)

by a round the clock personal physician attached to him based on need and request received from the dignitary; and

(c)

by a specialist or medical practitioner not falling under clause (a) or (b):]

Provided that a specialist or medical practitioner or medical attendant other than the regular medical attendant shall be called from outside the State in which the retired President is residing; only on the advice of the Director of Medical Services or other corresponding officer in the State concerned or the officer-in-charge of the principal Government hospital in the district.

(2)

The retired President shall also be entitled to any other expenditure that may be incurred by him in connection with his treatment by the medical attendant, the regular medical attendant or the specialist or practitioner referred to in sub-rule (1), as the case may be.

(3)

All expenses referred to in sub-rule (1) and (2) in rule 5 shall be borne by the Central Government on production of a certificate by the retired President in Form-II, or by any person authorised by him in this behalf in Form-IIA appended to these rules.

5.

Hospitals, Nursing Homes and Medical Institutions at which treatment may be received.

- A retired President shall also be entitled to medical treatment and attendance in any hospital, nursing home or medical institution in India. All expenses incurred in this connection shall be borne by the Central Government.

6.

Travelling Expenses.

- Any travelling expenses incurred by the retired President or the medical attendant or regular medical attendant or specialist or medical practitioner in connection with the medical attendance and treatment of the retired President shall be borne by the Central Government on production of a certificate by the retired President in Form-III, or any person authorised by him in this behalf in Form-IV, appended to these rules. In the case of a Government medical officer who may perform journeys to attend on the retired President, the travelling expenses may be drawn by him through the usual Government channels. If the officer belongs to a State Government, the latter may claim reimbursement of the cost from the Central Government.

6A.

Power of Attorney.

- All amounts payable to the retired President under the provisions of the Presidents Emoluments and Pension Act, 1951

(

30 of 1951

), and under the foregoing provisions of these rules may be drawn by or paid to the retired President himself, or, if he so

chooses, drawn by or paid to any person who holds a legally valid power of attorney to act in his behalf.

[6B. Application of rules 4 to 6A to the spouse of a retired President, etc. - (1) The provisions of rules 4 to 6A shall, so far as may be, apply to the spouse of a retired President and the spouse of a person who dies while holding office of President.

(2)

All expenses under this rule, shall be borne by the Central Government on production of a certificate by the spouse in Form-II or Form-III, as the case may be, or by any person authorised by such spouse in this behalf in Form-IIB or Form-IVA, as the case may be, appended to these rules.]

[Amended vide MHA Notification No. 13/1/76-States dated 28-2-1977]

7.

Interpretation and removal of difficulty.

- If any question arises relating to the interpretation of these rules or any difficulty arises in complying with the provisions of these rules, it shall be referred to the Central Government in the Ministry of Home Affairs whose decision thereon shall be final.

8.

Saving.

- Nothing in these rules shall be deemed to prevent the Central Government from providing to a retired President, his spouse or the spouse of a person who dies while holding the office of President any facility relating to the medical treatment or attendance or travelling expenses for any journey performed by him or the spouse which is not authorised by rules 4 to 6B.

Form - I

(Form of certificate referred to in sub-rule (4) of rule 3)

Certified that the amount of Rs..... (Rupees) drawn by me during the year ending 31st March, Has been expended on the maintenance of my secretarial staff and the office expenses thereof.

Signature :

Date :

Place :

Form - II

(Form of certificate referred to in rule 4 and rule 6B)

Certified that the amount of Rs..... (Rupees) drawn by me has been expended in connection with my medical treatment/attendance/consultation.

Signature :

Date :

Place :

Form - IIA

(Form of certificate referred to in rule 4)

Certified that the amount of Rs. (Rupees) drawn has been expended in connection with retired President medical treatment/attendance/ consultation.

Signature :

Date :

Place :

Form - IIB

(Form of certificate referred to in sub-rule (2) of rule 6B)

Certified that the amount of Rs. (Rupees) drawn has been expended in connection with the medical treatment/attendance/consultation of Shri/ Shrimati spouse of

Signature :

Designation :

Date :

Place :

Form - IA

(Form of certificate referred to in sub-rule (4) of rule 3)

Certified that the amount of Rs. (Rupees) drawn during the year ending 31st March, Has been expended on the maintenance of retired President's secretarial staff and the office expenses thereof.

Signature :

Designation :

Date :

Place :

Form - IA

(Form of certificate referred to in sub-rule(4) of rule 3)

Certified that the amount of Rs. (Rupees) drawn during the year ending 31st March, Has been expended on the maintenance of retired President's secretarial staff and the offices expenses thereof.

Signature :

Designation :

Date :

Place :

Form - III

(Form of certificate referred to in rule 6)

Certified that the amount of Rs. (Rupees) drawn by me on account of travelling expenses has been incurred by me/my medical attendant/specialist/medical practitioner in connection with medical consultation/attendance/treatment.

Signature :

Date :

Place :

Form - IV

(Form of certificate referred to in rule 6)

Certified that the amount of Rs. (Rupees) drawn on account of travelling expenses has been incurred by the retired President/the retired President's medical attendant/specialist/medical practitioner in connection with medical consultation/ attendance/treatment.

Signature :

Designation :

Date :

Place :

Form - IVA

[Form of certificate referred to in sub-rule (2) of rule 6B]

Certified that the amount of Rs. (Rupees) drawn on account of travelling expenses has been incurred by :-

(i)

Shri/Shrimati Spouse of

OR

(ii)

Medical attendant/specialist/medical practitioner of Shri/Shrimati spouse of In connection with medical consultation/attendance/treatment.

Signature :

Designation :

Date :

Place :

[Substituted vide Notification No. 10/19/96-M&G dated 10-2-2009 GSR No. 88(E)]

[Substituted vide Notification No. 10/19/96-M&G dated 10-2.2009 GSR No. 88(E)]

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